

Terms and Conditions for participation in a Sundai hack

Last Updated: May 20, 2025

Welcome to Sundai! By participating in any Sundai event, hack, or activity (collectively referred to as "the Event"), you agree to the following terms and conditions. These terms are designed to ensure a safe, collaborative, and respectful environment for all participants, while protecting Sundai and participants from potential legal issues or brand damage.

1. Purpose of Sundai

Sundai is a community-driven organization where AI researchers, designers and developers collaborate to build prototypes, minimum viable products (MVPs), research paper ideas or innovative solutions. The term "hack" at Sundai refers to creating quick and smart solutions, not to any malicious or illegal activity.

2. Open-Source Commitment

All prototypes and MVPs developed during Sundai events must be published as open-source code by the end of the Event. Participants must:

- Include proper attribution to Sundai with the note: *"Built at Sundai"*.
- Create a project card on the Sundai website (<http://sundai.club/projects>) to indicate that the project was developed at Sundai.

Note that any future follow up work on these projects can be closed source - no obligation to open source is expected after a Sundai event has concluded.

3. Attribution for Research Papers and Companies

- If a research paper results from a Sundai hack, Sundai Foundation must be referenced in the affiliations or featured prominently in the acknowledgements section.
- If a company is formed as a result of a Sundai hack, it must properly attribute Sundai by indicating *"Built at Sundai"* in its public materials.

4. Collaboration and Authorship

Collaboration and mutual respect are core values of Sundai. Participants must be generous in attributing rights and authorship to all contributors.

5. Prohibition on Recruitment and Promotion

It is strictly forbidden to attend Sundai events for the purpose of:

- Recruiting or scouting hackers for employment or other communities.
- Promoting or marketing any products, services, or commercial ventures.

Any recruitment or promotional activities must be approved in writing by a legal representative of Sundai. Violation of this rule may result in immediate removal from the Event and exclusion from future Sundai activities.

6. Code of Conduct

All participants must adhere to the following:

- **No Violence, Harassment, or Discrimination:** Sundai is committed to providing a safe and inclusive environment. Any form of violence, harassment, or discrimination will not be tolerated.
- **Respect for Others:** Participants must maintain good terms with each other and resolve conflicts amicably.
- **No Harmful Technology:** Participants are prohibited from using or building technology intended to harm others, cause damage, or have military applications.

7. Event Location Rules

Participants must:

- Stay within the designated event area and not enter private or restricted areas.
- Refrain from taking photos or videos of areas outside the immediate event space.
- Not bring unregistered individuals into the event space. All attendees must be officially registered and approved by Sundai organizers.
- Leave the event space clean and undamaged. Participants are personally liable for any damages they cause, and Sundai is not responsible for such damages.
- Not engage in any illegal activities

8. Event Participation

- Participation in Sundai events is subject to approval. All participants must apply through the official event form and receive explicit approval from Sundai organizers.
- Sundai reserves the right to deny access to any event or future events without explanation.

9. Intellectual Property (IP) Rights

- **Ownership of Pre-Existing IP:** Participants retain ownership of any intellectual property they bring to the Event. By participating, they grant Sundai a non-exclusive, royalty-free license to use, display, and share their contributions for promotional and educational purposes related to Sundai.

- **Ownership of New IP:** Any new intellectual property created during the Event will be owned by the creators, subject to the open-source and attribution requirements outlined in these terms.

10. Confidentiality

Participants agree not to disclose any confidential information shared during the Event without the express consent of the disclosing party. This includes, but is not limited to, proprietary ideas, code, or business plans.

11. Media and Publicity

- Participants may be photographed, recorded, or filmed during the Event. By attending, participants grant Sundai the right to use their likeness, name, and voice in promotional materials, social media, and other public-facing content.
- If a participant does not wish to be photographed or recorded, they must notify the organizers in writing prior to the Event.

12. Force Majeure

Sundai is not liable for any failure or delay in performing its obligations due to events beyond its reasonable control, including but not limited to natural disasters, pandemics, government restrictions, or other force majeure events.

13. Health and Safety

Participants agree to comply with all health and safety guidelines provided by Sundai and the event venue. This includes, but is not limited to, COVID-19 protocols, emergency procedures, and any other safety measures.

14. Volunteer Contributions

Sundai relies on the voluntary contributions of its community members to grow and improve. By participating in Sundai events, you acknowledge that any labor or contributions you provide are voluntary and unpaid, unless otherwise agreed in writing with Sundai.

15. Liability and Indemnification

- **Participant Liability:** Participants are personally responsible for their actions and any damages they cause during Sundai events. Sundai is not liable for any damages, injuries, or losses incurred by participants.
- **Indemnification:** Participants agree to indemnify and hold harmless Sundai, its founders, management, and affiliates from any claims, lawsuits, or damages arising from their participation in Sundai events.

16. Sundai Brand

Participants must not engage in any activity that could harm Sundai's reputation or brand. This includes, but is not limited to, malicious hacking, unethical behavior, or misrepresentation of Sundai's values.

17. Amendments to Terms

Sundai reserves the right to update or modify these terms and conditions at any time. Participants will be notified of any changes, and continued participation in Sundai events constitutes acceptance of the updated terms.

18. Governing Law

These terms and conditions are governed by the laws of the State of Delaware. Any disputes arising from participation in Sundai events will be resolved in the courts of the State of Delaware.

19. Severability

If any provision of these terms and conditions is found to be invalid or unenforceable, the remaining provisions will remain in full force and effect.

20. Dispute Resolution

- **Mediation:** In the event of a dispute, participants agree to first attempt to resolve the issue through mediation with a neutral third party.
- **Arbitration:** If mediation fails, disputes will be resolved through binding arbitration in accordance with the rules of the American Arbitration Association.

By participating in Sundai events, you acknowledge that you have read, understood, and agreed to these terms and conditions.

Sundai Foundation

team@sundai.club